133 Proposition 133: Penalties for Human Trafficking of a Minor

Placed on the ballot by citizen initiative • Passes with a majority vote

Ballot Title

Shall there be a change to the Colorado Revised Statutes modifying existing law concerning human trafficking of a minor for sexual servitude, and, in connection therewith, creating new law expanding human trafficking of a minor for sexual servitude to include knowingly trading anything of monetary value to buy or sell sexual activity with a minor and increasing the penalty to be life in prison without parole or release?

What Your Vote Means

YES A "yes" vote on Proposition 133 increases the penalties for child sex trafficking to life in prison without parole, and expands child sex trafficking to include buying sexual activity with a minor.

NO A "no" vote on Proposition 133 keeps the existing felony criminal penalties for child sex trafficking with a sentencing range of 8 to 48 years in prison plus a mandatory parole period.

134 Proposition 134: Male and Female Participation in School and Collegiate Sports

Placed on the ballot by citizen initiative • Passes with a majority vote

Ballot Title

Shall there be a change to the Colorado Revised Statutes creating new law restricting participation in all K-12 and collegiate school sports based on the participant's sex as determined by certain aspects of their biological reproductive system, and, in connection therewith, requiring a school, institution of higher education, or athletic association to designate each school or intramural athletic team or sport as male, female, or coeducational; only allowing participants to compete on the team or sport of their designated sex or to compete on a coeducational team; creating an exception to allow a female to participate on a male-designated team or sport if there is no female team available; prohibiting a government entity, licensing or accrediting organization, or athletic association from entertaining a complaint, opening an investigation, or taking other adverse action against a school for maintaining separate teams or sports for females; and providing the commissioner of education with the authority to enforce the proposed initiative for K-12 school districts?

What Your Vote Means

YES A "yes" vote on Proposition 134 means that all school-based athletic teams and sports must be designated as being for biological males or biological females only, or as mixed, and requires schools and school districts to adopt policies on sex eligibility for sports.

NO A "no" vote on Proposition 134 means that individual schools, school districts, and athletic associations may continue to set their own policies in alignment with current state and federal law about who is eligible to participate on a team or in a sport.

134

Proposition 134: Male and Female Participation in School and Collegiate Sports

Placed on the ballot by citizen initiative • Passes with a majority vote

Proposition 134 proposes amending the Colorado statutes to:

- require that all elementary through collegiate school-based athletic teams and sports be designated as male-only or female-only based on biological sex, unless the team or sport is designated as open to participation by individuals of any sex or gender;
- require schools and school districts to implement policies to ensure that students are assigned to gender-designated teams that align with their biological sex; and
- prohibit investigations of, or penalties for, a school that designates a team or sport as female-only.

What Your Vote Means

YES A "yes" vote on Proposition 134 means that all school-based athletic teams and sports must be designated as being for biological males or biological females only, or as mixed, and requires schools and school districts to adopt policies on sex eligibility for sports.

NO A "no" vote on Proposition 134 means that individual schools, school districts, and athletic associations may continue to set their own policies in alignment with current state and federal law about who is eligible to participate on a team or in a sport.

Summary and Analysis of Proposition 134

What does the measure do?

The measure requires that any school-based team or sport be explicitly designated as being:

- for biological males only;
- for biological females only; or
- coeducational or mixed.

Under the measure, students must compete on teams that match their biological sex or on a coeducational team. Biological females are allowed to participate on a team or sport designated for biological males if there is no equivalent female team offered for that sport. Participation on a coeducational or mixed team or sport is open to all. In addition, the measure prohibits any government

entity, licensing or accrediting organization, or athletic association from investigating or penalizing a school for designating a team or sport as being only for biological females.

How does the measure define biological males and females?

The measure defines biological sex in terms of production of reproductive cells. "Male" is defined as children or adults whose biological reproductive system is organized around the production of sperm cells. "Female" is defined as children or adults whose biological reproductive system is organized around the production of ova, or egg cells. The measure does not impose a specific method for determining or demonstrating biological sex. Individual schools or school districts must determine their own verification procedures.

What teams does the measure apply to?

The measure applies to all teams and sports organized by schools or athletic associations, including teams that compete against other schools, in-house intramural sports, and after-school programs sponsored by schools. Schools include all public, charter, private, and religious school teams and sports from elementary through high school, and all public or private colleges, universities, and community colleges. Athletic associations are defined in the measure as organizations that administer extracurricular athletic competitions for schools. The measure does not apply to youth sports and leagues that operate separately from schools.

The governing body of every school or district must adopt a policy implementing the requirements established by the measure. For public K-12 schools, if a school district does not follow the measure's requirements, the state Commissioner of Education must first notify the district of its noncompliance. If the school district does not respond to this notification with a good-faith attempt to comply, then the commissioner must take corrective action. The measure does not establish an enforcement mechanism for private K-12 schools, colleges and universities, or athletic associations that do not adhere to the measure's requirements.

How does the measure interact with state and federal anti-discrimination law?

The Colorado Anti-Discrimination Act (CADA) prohibits discrimination in employment, housing, and places of public accommodation based on a person's sex, sexual orientation, gender identity, and gender expression. Public K-12 schools, colleges, and universities may not exclude students from extracurricular activities that align with their gender identity, even if their gender identity is different from their biological sex. It is unclear at this time how the measure will impact current state law.

At the federal level, Title IX of the Education Amendments of 1972 prohibits sex-based discrimination in federally funded education programs. Courts and presidential administrations have interpreted Title IX in a variety of ways, sometimes including and sometimes excluding gender identity under the definition of "sex." On February 5, 2025, the President issued Executive Order 14201, "Keeping Men Out of Women's Sports," which directs federal agencies to interpret Title IX as prohibiting biological males from participating on teams or in sports designated as being for biological females. States that do not adhere to federal policy may face cuts in federal funding, and state laws or policies that conflict with federal law may face legal challenges from the federal government. At least seven Colorado schools

and school districts have adopted policies restricting biological males who identify as female from participating in female sports. In June 2026, the U.S. Supreme Court ruled that Title IX permits states to adopt laws that maintain separate male and female sports based on biological sex.

How do athletic associations currently address this issue?

The Colorado High School Activities Association (CHSAA), the association that oversees high school sports, recognizes a right for transgender athletes to participate in school activities. Its rules allow CHSAA to review schools' athletic eligibility decisions for transgender students. In 2025, eight schools and school districts in Colorado filed a federal lawsuit challenging CHSAA rules and CADA requirements related to classification of sports teams by sex. The group of schools and districts and CHSAA reached a settlement agreement in December 2025 that allows schools to maintain separate sports teams and facilities for biological males and biological females without being penalized or sanctioned by CHSAA. However, the portion of the lawsuit challenging CADA is still ongoing.

At the collegiate level, the National Collegiate Athletic Association (NCAA) rules state that competing in female sports is limited to student athletes who are assigned female at birth, and student athletes assigned male at birth cannot receive athletic scholarships designed for females, regardless of their gender identity. The NCAA rules do not apply to intramural collegiate sports.

Arguments For Proposition 134

1) Females should be able to compete against other females. Allowing biological males to participate on female teams creates an unfair advantage for the males and can prevent female athletes from achieving wins, records, podium spots, and scholarship opportunities. The measure protects the accomplishments of female athletes and creates a consistent, statewide standard for participation on female teams. Without uniform rules, female athletes across the state compete under different policies and conditions, resulting in an uneven playing field. The measure ensures that all female athletes can compete fairly no matter where they live.

2) Allowing biological males to participate on female teams or in female sports jeopardizes the safety and physical and emotional boundaries of female athletes. Regardless of one's gender identity, genetic differences between biological males and biological females can affect physical strength, stature, lung capacity, muscle tone, and growth. Males and females are separated in certain sports due to the physical differences between the sexes and the risk for injury. Beyond the field of play, shared locker rooms raise privacy concerns. The measure creates a reasonable policy grounded in biological sex that promotes the safety of all participants.

Arguments Against Proposition 134

1) The measure does not protect fairness; it turns athletic eligibility into a body inspection and manufactures new grounds for discrimination. It could subject many athletes, not just those who are transgender, to uncomfortable physical inspections. Mandating a statewide eligibility standard, but not a clear method for determining eligibility, will require schools and districts to create their own

separate policies, which will likely lead to unfair and uneven treatment of student athletes across the state. Some athletes may be forced to undergo invasive or expensive testing to prove their biological sex, while others may be able to simply provide a note from a doctor. Certain athletes could even be targeted for additional testing based on their physical strength, appearance, or athletic success.

2) School sports should be a space where all kids can build confidence, health, and belonging and have the opportunity to learn teamwork, leadership, and goal setting. Targeting an at-risk group of students by preventing them from playing on teams with their peers and instead requiring them to play on teams that do not match their gender identity leads to harassment, shame, embarrassment, and feelings of isolation and exclusion. The measure's rigid participation standards apply to kids of all ages and abilities, affecting even young children who just want to play on teams with their friends and peers and are not competing for championships or scholarships.

Information about the organizations supporting and opposing this measure is available on the Colorado Secretary of State's website:

www.coloradosos.gov/pubs/elections/Initiatives/ballot/contacts/2026.html

Fiscal Impact of Proposition 134

State Spending

Proposition 134 will increase workload and legal costs by an indeterminate amount in the Colorado Department of Education if a school district is intentionally out of compliance with the measure and the Commissioner of Education is required to take remedial action. Legal services are provided by the Department of Law.

In addition, state institutions of higher education will have increased costs to adopt or update policies for interscholastic or intramural athletic programs to align with the requirements in the measure. Any costs are assumed to be paid by institutional revenue, such as tuition, fees, or athletic department revenue.

Local Government Spending

Proposition 134 will increase workload and may increase costs for schools, school districts and charter schools that offer interscholastic or intramural athletic programs to update and implement their policies. These costs are expected to be minimal. To the extent the Colorado Department of Education takes remedial action for noncompliance, legal and other costs may also increase for school districts.

Proposition 133
Penalties for Human Trafficking of a Minor

The ballot title below is a summary drafted by the professional staff of the offices of the secretary of state, the attorney general, and the legal staff for the general assembly for ballot purposes only. The ballot title will not appear in the Colorado Revised Statutes. The text of the measure that will appear in the Colorado Revised Statutes below was drafted by the proponents of the initiative. The initiated measure is included on the ballot as a proposed change to current law because the proponents gathered the required amount of petition signatures.

Ballot Title:
Shall there be a change to the Colorado Revised Statutes modifying existing law concerning human trafficking of a minor for sexual servitude, and, in connection therewith, creating new law expanding human trafficking of a minor for sexual servitude to include knowingly trading anything of monetary value to buy or sell sexual activity with a minor and increasing the penalty to be life in prison without parole or release?

Text of Measure:
Be it enacted by the people of the State of Colorado
SECTION 1. Legislative Declaration. (1) The people of the State of Colorado hereby find and declare:
(a) Residents of Colorado and other states and territories throughout the United States have seen an alarming increase in human trafficking, especially human trafficking involving minor children;
(b) Current penalties in Colorado law with parole possible in as little as eight years have failed to adequately deter the human trafficking of minor children; and
(c) It is the measure of a fair and compassionate society to ensure that children are not for sale.
SECTION 2. In Colorado Revised Statutes, 18-3-504, **amend** (2)(a) and (2)(b); and **add** (5) and (6) as follows:
18-3-504. Human trafficking for sexual servitude - human trafficking of a minor for sexual servitude.
(2) (a) A person commits human trafficking of a minor for sexual servitude if the person:
(I) Knowingly sells, recruits, harbors, transports, transfers, isolates, entices, provides, receives, obtains by any means, maintains, or makes available a minor for the purpose of commercial sexual activity; ~~or~~
(II) Knowingly advertises, offers to sell, or sells travel services that facilitate an activity prohibited pursuant to subsection (2)(a)(I) of this section; OR
(III) KNOWINGLY TRADES ANYTHING OF MONETARY VALUE TO BUY OR SELL SEXUAL ACTIVITY WITH A MINOR.
(b) Human trafficking of a minor for sexual servitude is a class ~~2~~ 1 felony. The court shall sentence a person convicted of such a class ~~2~~ 1 felony to the department of corrections for a term of ~~at least the minimum of the presumptive range for a class 2 felony,~~ LIFE IN PRISON WITHOUT PAROLE OR RELEASE, as set forth in section 18-1.3-401.
(5) NOTHING IN THIS SECTION SHALL LIMIT A GOVERNOR'S STANDING AUTHORITY OF PARDON, COMMUTATION, OR CLEMENCY.
(6) THE SHORT TITLE OF THIS SECTION IS THE "CHILDREN ARE NOT FOR SALE ACT."
SECTION 3. Effective date -- applicability. This act takes effect on January 1, 2027, and applies to offenses committed on or after that date.

Proposition 134
Male and Female Participation in School and Collegiate Sports

The ballot title below is a summary drafted by the professional staff of the offices of the secretary of state, the attorney general, and the legal staff for the general assembly for ballot purposes only. The ballot title will not appear in the Colorado Revised Statutes. The text of the measure that will appear in the Colorado Revised Statutes below was drafted by the proponents of the initiative. The initiated measure is included on the ballot as a proposed change to current law because the proponents gathered the required amount of petition signatures.

Ballot Title:
Shall there be a change to the Colorado Revised Statutes creating new law restricting participation in all K-12 and collegiate school sports based on the participant's sex as determined by certain aspects of their biological reproductive system, and, in connection therewith, requiring a school, institution of higher education, or athletic association to designate each school or intramural athletic team or sport as male, female, or coeducational; only allowing participants to compete on the team or sport of their designated sex or to compete on a coeducational team; creating an exception to allow a female to participate on a male-designated team or sport if there is no female team available; prohibiting a government entity, licensing or accrediting organization, or athletic association from entertaining a complaint, opening an investigation, or taking other adverse action against a school for maintaining separate teams or sports for females; and providing the commissioner of education with the authority to enforce the proposed initiative for K-12 school districts?

Text of Measure:

Be it enacted by the people of the State of Colorado,

SECTION 1. Legislative Declaration. The people of the State of Colorado hereby find and declare;

(1) Males and females possess unique and immutable biological differences that manifest prior to birth and increase as they age and experience puberty;

(2) Biological differences between the sexes are enduring and may, in some circumstances, warrant the creation of separate social, educational, athletic, or other arrangements in order to ensure safety and to allow members of each sex to succeed and thrive;

(3) Physical differences between males and females have long made separate and sex-specific sports teams important so that female athletes can have equal opportunities to compete in sports while reducing the risk of physical injury; and

(4) Because of the physical differences between males and females, having separate athletic teams based on the biological sex of the athlete reduces the chance of injury to female athletes, promotes equality between the sexes, provides opportunities for female athletes to compete against their female peers rather than against male athletes, and allows female athletes to compete on a fair playing field for athletic accomplishments, including educational scholarships.

SECTION 2. In Colorado Revised Statutes, **add** article 60 to title 25 as follows:

25-60-101. Short Title. ARTICLE 60 OF THIS TITLE SHALL BE KNOWN AND MAY BE CITED AS THE "PROTECT WOMEN AND GIRLS SPORTS ACT."

25-60-102. Definitions: AS USED IN THIS ARTICLE 60, UNLESS THE CONTEXT OTHERWISE REQUIRES:

(1) "ATHLETIC ASSOCIATION" MEANS A CORPORATION, ASSOCIATION, OR ORGANIZATION WHICH HAS AS ONE OF ITS PRIMARY PURPOSES THE SPONSORING OR ADMINISTRATION OF EXTRACURRICULAR INTERSCHOLASTIC ATHLETIC CONTESTS OR COMPETITIONS.

(2) "BOY" MEANS AN ADOLESCENT HUMAN MALE.

(3) "FEMALE" MEANS A PERSON WHOSE BIOLOGICAL REPRODUCTIVE SYSTEM IS ORGANIZED AROUND THE PRODUCTION OF OVA. FEMALE INCLUDES A WOMAN AND A GIRL.

(4) "GIRL" MEANS AN ADOLESCENT HUMAN FEMALE.

(5) "MALE" MEANS A PERSON WHOSE BIOLOGICAL REPRODUCTIVE SYSTEM IS ORGANIZED AROUND THE PRODUCTION OF SPERM. MALE INCLUDES A MAN AND A BOY.

(6) "MAN" MEANS AN ADULT HUMAN MALE.

(7) "POSTSECONDARY EDUCATIONAL INSTITUTION" MEANS A PUBLIC OR PRIVATE UNIVERSITY, COLLEGE, OR COMMUNITY COLLEGE LOCATED IN COLORADO THAT IS A MEMBER INSTITUTION OF AN ACCREDITING BODY RECOGNIZED BY THE UNITED STATES DEPARTMENT OF EDUCATION.

(8) "SCHOOL" MEANS ANY

(a) PUBLIC, CHARTER, PRIVATE, OR DENOMINATIONAL SCHOOL OFFERING INSTRUCTION IN ELEMENTARY OR SECONDARY GRADES OR

(b) POSTSECONDARY EDUCATIONAL INSTITUTION.

(9) "STATE AGENCY" MEANS ANY STATE BOARD, BUREAU, COMMISSION, DEPARTMENT, INSTITUTION, DIVISION, SECTION, OR OFFICER OF THE STATE, EXCEPT THOSE IN THE LEGISLATIVE BRANCH OR JUDICIAL BRANCH.

(10) "WOMAN" MEANS AN ADULT HUMAN FEMALE.

25-60-103. Men's and women's sports teams.

(1) AN INTERSCHOLASTIC OR INTRAMURAL ATHLETIC TEAM OR SPORT THAT IS SPONSORED BY A SCHOOL OR ATHLETIC ASSOCIATION SHALL BE EXPRESSLY DESIGNATED AS ONE OF THE FOLLOWING BASED ON BIOLOGICAL SEX:

(a) MALES, MEN, OR BOYS;

(b) FEMALES, WOMEN, OR GIRLS; OR

(c) COEDUCATIONAL OR MIXED.

(2)(a) AN INTERSCHOLASTIC OR INTRAMURAL ATHLETIC TEAM OR SPORT SPONSORED BY A SCHOOL OR ATHLETIC ASSOCIATION THAT IS DESIGNATED FOR FEMALES, WOMEN, OR GIRLS SHALL NOT BE OPEN TO A MALE STUDENT OR PARTICIPANT.

(b) AN INTERSCHOLASTIC OR INTRAMURAL ATHLETIC TEAM OR SPORT SPONSORED BY A SCHOOL OR ATHLETIC ASSOCIATION AND DESIGNATED FOR MALES, MEN, OR BOYS SHALL NOT BE OPEN TO A FEMALE STUDENT OR PARTICIPANT UNLESS THERE IS NO FEMALE TEAM OFFERED OR AVAILABLE FOR SUCH SPORT FOR SUCH FEMALE STUDENT OR PARTICIPANT.

(3) NOTHING IN THIS SECTION SHALL BE CONSTRUED TO RESTRICT THE ELIGIBILITY OF ANY STUDENT OR PARTICIPANT TO PARTICIPATE IN ANY INTERSCHOLASTIC OR INTRAMURAL ATHLETIC TEAMS OR SPORTS DESIGNATED AS COEDUCATIONAL OR MIXED.

(4) A GOVERNMENT ENTITY, LICENSING OR ACCREDITING ORGANIZATION, OR ATHLETIC ASSOCIATION MAY NOT ENTERTAIN A COMPLAINT, OPEN AN INVESTIGATION, OR TAKE ANY OTHER ADVERSE ACTION AGAINST A SCHOOL FOR MAINTAINING A

separate interscholastic or intramural athletic team or sport for female students or participants.

25-60-104. Enforcement by the Commissioner of Education.

(1) The governing body of each school must adopt a policy implementing the provisions of this article.

(2) If the commissioner of education determines that any school district as defined in section 22-30-103(13) has intentionally refused to comply with this article, the commissioner shall notify the school district of the noncompliance and allow the school district a reasonable time to comply. If the commissioner determines, after such time has elapsed, that the school district is not in compliance and has not made a good-faith attempt to comply, the commissioner shall take appropriate remedial action within the commissioner's authority.

25-60-105. Protections under the Americans with Disabilities Act. Notwithstanding any other provision within this article, an individual born with a diagnosis of a disorder or difference in sex development must receive all legal protections and accommodations afforded under federal law.

25-60-106. Severability. If any section in this act or any part of any section is declared invalid or unconstitutional, the declaration shall not affect the validity or constitutionality of the remaining portions.

SECTION 3. Effective Date. This measure shall become effective on January 1, 2027.

Proposition 135
Prohibit Surgery on Minors in Response to Perception of Sex or Gender

The ballot title below is a summary drafted by the professional staff of the offices of the secretary of state, the attorney general, and the legal staff for the general assembly for ballot purposes only. The ballot title will not appear in the Colorado Revised Statutes. The text of the measure that will appear in the Colorado Revised Statutes below was drafted by the proponents of the initiative. The initiated measure is included on the ballot as a proposed change to current law because the proponents gathered the required amount of petition signatures.

Ballot Title:

Shall there be a change to the Colorado Revised Statutes modifying existing law by prohibiting surgery on a minor for the purpose of altering the minor's biological sex characteristics, and, in connection therewith, prohibiting any health-care professional or other person from knowingly performing, prescribing, administering, or providing any surgery to a minor for the purpose of altering the minor's biological sex characteristics and prohibiting the use of state or federal funds, Medicaid reimbursement, or insurance coverage to pay for this type of surgery?

Text of Measure:

Be it enacted by the people of the State of Colorado:

SECTION 1. Legislative Declaration. (1) The people of Colorado do hereby find and declare that:

(a) Children lack the maturity to make permanent, life-altering medical decisions;

(b) Medical treatments or interventions that attempt to surgically alter a minor child's biological sex often result in serious, irreversible consequences, including sterility;

(c) European nations, including Sweden, Finland, and the United Kingdom, have halted surgery due to the serious and widespread harm resulting from that intervention; and

(d) Colorado law already protects children from other, permanent and potentially life-altering decisions, such as consuming alcohol and smoking. The same protections should apply to irreversible medical interventions related to biological sex.

SECTION 2. In Colorado Revised Statutes, **add** 12-30-125 as follows:

12-30-125. Prohibition on surgery for minors – prohibition on state funding for surgery - short title – definitions.

(1) **Short title.** The short title of this section is the "Protect Children From Irreversible Sex Change Surgery Act".

(2) **Definitions.** As used in this section, unless the context otherwise requires:

(a) "Altering biological sex characteristics" means treatment in response to a minor's perception of sex or gender. It does not include treatment for persons born with a medically verifiable disorder of sex development or treatment for acquired physical or chemical abnormalities. "Altering biological sex characteristics" does not include male circumcision.

(b) "health-care professional" means any person licensed in this state or any other state to practice medicine, chiropractic, nursing, physical therapy, podiatry, dentistry, pharmacy, optometry, psychiatry, psychology, mental health therapy, or other healing arts. The term includes any professional corporation or other